

Court No. - 29

Case :- WRIT - C No. - 27253 of 2019

Petitioner :- Mukund Tripathi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Chandra Solanki

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Ram Chandra Solanki, learned counsel for the petitioner and Sri Baleshwar Chaturvedi for respondent no. 2.

The petitioner has filed this petition for quashing of the recovery citation dated 21.5.2019 whereunder a sum of Rs. 2,23,209/- is being sought to be realized from him as electricity dues upto the month of April 2019.

The submission of learned counsel for the petitioner is that the aforesaid bill of the month of April 2019 showing arrears of electricity dues is illegal and incorrect.

The petitioner has challenged the correctness of the said bill by means of a complaint no. 17 of 2019 before the Permanent Lok Adalat and the matter is under consideration but in the meantime the impugned recovery has been issued.

The correctness of the electricity bill can be rectified by the Executive Engineer if the petitioner invokes clause 6.5 of the U.P. Electricity Supply Code, 2003. Moreover, since the correctness of the bill has also been disputed by the petitioner before the Permanent Lok Adalat, he should await the decision thereof.

Since there is no stay of the realization of the electricity dues as per the aforesaid bill, it can not be said that the respondents have acted unjustly or illegally in initiating proceedings for realization of the aforesaid amount.

In view of the aforesaid facts and circumstances, we do not deem it proper to intervene in the matter and the petition is disposed of with liberty to the petitioner to either get the matter decided before the Permanent Lok Adalat or to get the bill rectified by moving appropriate application before the Executive Engineer.

The writ petition stands disposed of accordingly.

Order Date :- 12.9.2019

SKS